

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----x
TYHISHA DUKES

Plaintiff,

-against-

CITY OF NEW YORK, STEVEN ACEVEDO,
SEAN CARROLL, JOHN DOE 1, and JOHN DOE 2,

Defendants.
-----x

To the above named Defendant(s):

Index No.:
Date Purchased:

Plaintiffs designate
Queens County as the
Place of Trial

S U M M O N S

The basis of venue is
location of occurrence:
160th St. and Baisley Blvd.,
County of Queens

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on Plaintiff(s) Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 20, 2020

Yours, etc.,

KELNER & KELNER, ESQS.

By:



Joshua D. Kelner, Esq.
Attorneys for Plaintiffs
140 Broadway, 37th Floor
New York, NY 10005
(212) 425-0700

Defendant's Address:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

STEVEN ACEVEDO

c/o New York City Police Department

1 Police Plaza

New York, New York

SEAN CARROLL

c/o New York City Police Department

1 Police Plaza

New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
TYHISHA DUKES,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, STEVEN ACEVEDO,
SEAN CARROLL, JOHN DOE 1, and JOHN DOE 2,

Defendants.

-----X

Plaintiff TYHISHA DUKES, by her attorneys, KELNER & KELNER, ESQS., as and for
her Verified Complaint in the above-captioned matter, hereby alleges as follows upon
information and belief:

As and For a First Cause of Action

1. At all times herein mentioned, defendant CITY OF NEW YORK (hereinafter
“CITY”) was and remains a municipal corporation, duly organized and existing under and by
virtue of the laws of the State of New York.

2. On March 17, 2020, plaintiff duly served a Notice of Claim, in writing, upon
defendant CITY, within ninety (90) days from when within causes of action accrued.

3. On May 12, 2020, plaintiff duly appeared for a hearing pursuant to General
Municipal Law §50-h.

4. More than thirty (30) days have elapsed since the service of said Notice of Claim
upon defendant, and defendant and its Comptroller have failed, neglected, and refused to pay,
settle, compromise or adjust the claims of the plaintiff herein.

5. This action has been commenced within one year and ninety days from when
within causes of action accrued, and is timely.

6. The causes of action asserted herein are not subject to the provisions of Article 16 of the CPLR and/or come within one or more of the stated exceptions thereto set forth in CPLR § 1602.

7. At all times herein mentioned, defendant SEAN CARROLL (hereinafter “CARROLL”) was an agent, servant, and/or employee of the City of New York, by and through its Police Department.

8. At all times herein mentioned, defendant CARROLL maintained the rank of Detective.

9. At all times herein mentioned, defendant STEVEN ACEVEDO (hereinafter “ACEVEDO”) was an agent, servant, and/or employee of the City of New York, by and through its Police Department.

10. At all times herein mentioned, defendant ACEVEDO maintained the rank of Detective.

11. At all times herein mentioned, defendant JOHN DOE 1, a fictitious name, his/her real name being unknown, was an agent, servant, and/or employee of the City of New York, by and through its Police Department.

12. At all times herein mentioned, defendant JOHN DOE 2, a fictitious name, his/her real name being unknown, was an agent, servant, and/or employee of the City of New York, by and through its Police Department.

13. At all times herein mentioned, defendant CARROLL was acting under color of state law, on behalf of defendant CITY OF NEW YORK, and with the power and authority vested in him as a consequence thereof.

14. At all times herein mentioned, defendant ACEVEDO was acting under color of state law, on behalf of defendant CITY OF NEW YORK, and with the power and authority vested in him as a consequence thereof.

15. At all times herein mentioned, defendant JOHN DOE 1 was acting under color of state law, on behalf of defendant CITY OF NEW YORK, and with the power and authority vested in him/her as a consequence thereof.

16. At all times herein mentioned, defendant JOHN DOE 2 was acting under color of state law, on behalf of defendant CITY OF NEW YORK, and with the power and authority vested in him/her as a consequence thereof

17. At all times herein mentioned, plaintiff TYHISHA DUKES was a resident of the County of Queens, State of New York.

18. On January 11, 2020, at approximately 6:00 p.m., plaintiff was lawfully an occupant of a stopped motor vehicle, at and/or near the intersection of 160th Street and Baisley Boulevard, in the County of Queens, State of New York.

19. At the aforesaid time and place, defendants approached the vehicle.

20. At the aforesaid time and place, defendants approached the vehicle with weapons drawn.

21. At the aforesaid time and place, defendants unlawfully and without probable cause seized the vehicle and ordered plaintiff from it.

22. At the aforesaid time and place, defendants unlawfully searched plaintiff's person and possessions, including, but not limited to, the inside of her purse, absent probable cause, a warrant for same, or other legally justifiable cause.

23. The aforesaid search was conducted in violation of plaintiff's rights under the United States Constitution, including, but not limited to, the Fourth and Fourteenth Amendments thereto.

24. The aforesaid search was conducted in violation of plaintiff's rights under the New York State Constitution.

25. Defendants unlawfully arrested plaintiff and charged her with criminal offenses, including, but not limited to, Criminal Possession of a Controlled Substance, in violation of Penal Law §220.03.

26. The aforesaid arrest was effected wrongfully, and without probable cause.

27. Defendants knew that plaintiff did not unlawfully possess a controlled substance.

28. Defendants knew that plaintiff had a prescription for the possession of the substance at issue at and prior to the time of the arrest, and proceeded to arrest her nonetheless.

29. Defendants were presented with specific proof of such prescription prior to the arrest, and knew that the charges they were filing were legally false.

30. Defendants knew they lacked lawful cause to arrest plaintiff.

31. Defendants made false statements and claims in connection with the arrest, and otherwise acted in flagrant bad faith in proceeding against plaintiff.

32. Plaintiff was confined following the arrest, and was wrongfully subjected to an intrusive body search and handcuffed to a bench as a result thereof.

33. Defendants intended to confine plaintiff.

34. Plaintiff was aware of such confinement, and did not consent to same.

35. Defendants' confinement of plaintiff was not privileged, and was effected in the absence of probable cause or legal justification.

36. Defendants falsely arrested and imprisoned plaintiff.

37. Defendants initiated a criminal proceeding against plaintiff in the Queens Criminal Court.

38. All charges against plaintiff were fully and finally dismissed, by the Honorable Joanne Watters, on February 19, 2020.

39. As a result of the foregoing, plaintiff was caused to suffer physical and/or emotional injury and economic loss and other and further damages.

40. By reason of the foregoing, defendants CITY OF NEW YORK, ACEVEDO, CARROLL, JOHN DOE 1, and JOHN DOE 2 are liable to plaintiff in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

As and For a Second Cause of Action

41. Plaintiff repeats, reiterates, and realleges the allegations set forth at items 1 through 40 as though more fully set forth herein.

42. Defendants commenced a criminal proceeding against plaintiff.

43. The proceeding terminated in favor of plaintiff, in that the charges were fully and finally dismissed.

44. The aforesaid proceeding was commenced in the absence of probable cause, and with actual malice, including, but not limited to, in that defendants knew that plaintiff did not commit a criminal offense and were motivated by a purpose other than to see the ends of justice served.

45. As a result of the foregoing, plaintiff was caused to suffer physical and/or emotional injury and economic loss and other and further damages.

46. By reason of the foregoing, defendants CITY OF NEW YORK, ACEVEDO, CARROLL, JOHN DOE 1, and JOHN DOE 2 are liable to plaintiff in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

As and For a Third Cause of Action

47. Plaintiff repeats, reiterates, and reallege the allegations set forth at items 1 through 46 as though more fully set forth herein.

48. 42 U.S.C. §1983 provides that “[e]very person who under color of any statute, ordinance, regulation, custom, or usage, of any State...subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress.”

49. Defendants CARROLL, ACEVEDO, JOHN DOE 1, and JOHN DOE 2, acting under color of state law, deprived plaintiff of her rights under the United States Constitution, including the Fourth, Fifth, and Fourteenth Amendments thereto.

50. Defendants CARROLL, ACEVEDO, JOHN DOE 1, and JOHN DOE 2 are liable to plaintiff for damages, pursuant to 42 U.S.C. §1983.

51. As a result of the foregoing, plaintiff was caused to suffer physical and/or emotional injury and economic loss and other and further damages.

52. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

53. Plaintiff further demands statutory attorneys’ fees, pursuant, *inter alia*, to 42 U.S.C. §1988.

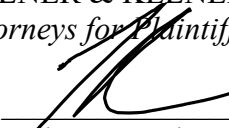
Conclusion

WHEREFORE, plaintiff demands judgment against the defendants on the first cause of action, in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this action; on the second cause of action, in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this action; on the third cause of action, in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this action; statutory attorneys' fees; and the costs and disbursements herein.

Dated: New York, New York
November 20, 2020

Yours, etc.,

KELNER & KELNER, ESQS.
Attorneys for Plaintiff

By: 

Joshua D. Kelner
140 Broadway, 37th Floor
New York, New York 10005
(212) 425-0700

VERIFICATION

JOSHUA D. KELNER, an attorney duly admitted to practice law in the State of New York, hereby affirms as follows under the penalties of perjury:

I am associated with the firm of KELNER & KELNER, ESQS., the attorneys of record for plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof. The same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not the plaintiff is that the plaintiff does not reside in the county wherein the attorneys for the plaintiff maintain their offices.

Dated: New York, New York
November 20, 2020



JOSHUA D. KELNER